

seised in trust, the statute will operate, and execute the possession in A.

6. *Doe v. Nicholls*. — And where copyholds were devised to trustees during the minority of the testator's son, "the same to be *transferred* to him" when he attained twenty-one, and if he died under twenty-one the testator gave the estate over, it was held that the trustees took a chattel interest only, until the son attained twenty-one, and that the copyholds then vested in the son. It was said, that if the devise were to the son on attaining twenty-one without the intervention of trustees, the *admission* of the son as tenant on the rolls would operate as a *transfer* of the estate, and that the words "the same to be transferred" did not imply [*212] that the *trustees* were to *transfer the legal estate (*a*). This construction, however, appears to be somewhat forced, and is not quite satisfactory.

7. *Trust to pay or permit, &c.* — Where the trust is "to pay unto *or* permit and suffer a person to receive" the rents, as the former words would create a special trust, and the latter would be construed a use executed by the statute, the Court holds, for want of a better reason, that the former or latter words shall prevail, as the instrument, in which they are found, happens to be a deed or a will (*b*). But it may be asked, why might not the settlor have meant to vest a *discretion* in the trustees, either to receive the rents themselves, *or* to put the *cestui que trust* in possession, and if so, the intention would require that the legal estate should be in the trustee. However, numerous titles must have been accepted on the faith of the case referred to, and at this distance of time it might be dangerous to reverse it; and this is the view adopted by the Court (*c*). [But this rule establishes no principle, and will readily yield to any indication of a contrary intention; and where the trust was to "pay the rents unto, or permit the same to be received by, one of the trustees," the Court of Appeal held that effect could be given to both sets of words, that there was no inconsistency, and conse-

(a) *Doe v. Nicholls*, 1 B. & C. 336.

(c) *Baker v. White*, 20 L. R. Eq.

(b) *Doe v. Biggs*, 2 Taunt. 109.

171.